

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alyssa Rogowski	Team: Squad #07	CCRB Case #: 201807943	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/16/2018 1:05 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/16/2020	Precinct: 70		
Date/Time CV Reported Mon, 09/17/2018 10:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/25/2018 10:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrey Kravchenko	01658	964594	070 PCT
2. POM Paulius Simulevicius	18796	959987	070 PCT
3. SGT Anthony Nevandro	01720	941091	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Semih Sezen	13044	927507	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Andrey Kravchenko	Abuse: Police Officer Andrey Kravchenko refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . POM Andrey Kravchenko	Abuse: Police Officer Andrey Kravchenko refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Paulius Simulevicius	Abuse: Police Officer Paulius Simulevicius refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . POM Paulius Simulevicius	Abuse: Police Officer Paulius Simulevicius refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated
E . POM Andrey Kravchenko	Abuse: Police Officer Andrey Kravchenko searched § 87(2)(b)'s property.	E . Unfounded
F . POM Paulius Simulevicius	Abuse: Police Officer Paulius Simulevicius searched § 87(2)(b)'s property.	F . Unfounded
G . POM Andrey Kravchenko	Abuse: Police Officer Andrey Kravchenko forcibly removed § 87(2)(b) to the hospital	G . Exonerated
H . POM Paulius Simulevicius	Abuse: Police Officer Paulius Simulevicius forcibly removed § 87(2)(b) to the hospital	H . Exonerated
I . SGT Anthony Nevandro	Abuse: Sergeant Anthony Nevandro forcibly removed § 87(2)(b) to the hospital	I . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 17, 2018, § 87(2)(b) filed the following complaint with IAB via call to 311.

On September 16, 2018 at approximately 1:05pm, § 87(2)(b) called 911 regarding a home care worker, identified as § 87(2)(b) whom she wanted removed from her apartment. Police Officer Andrey Kravchenko and Police Officer Paulius Simulevicius, both of the 70th Precinct, responded. When the officers left without having § 87(2)(b) removed, § 87(2)(b) called 911 again. PO Kravchenko and PO Simulevicius again responded to § 87(2)(b)'s apartment. Both times § 87(2)(b) interacted with PO Kravchenko and PO Simulevicius, she allegedly asked for their names and badge numbers which they allegedly failed to provide (**Allegations A-D: Abuse of Authority, unsubstantiated**). When PO Kravchenko and PO Simulevicius responded the second time, they allegedly searched through § 87(2)(b)'s medications (**Allegations E – F: Abuse of Authority, unfounded**). PO Kravchenko and PO Simulevicius then called for a supervisor. Sergeant Anthony Nevandro of the 70th Precinct arrived and the officers had EMTs remove § 87(2)(b) to § 87(2)(b) after she refused to allow the home care worker to stay in her apartment (**Allegations G-I: Abuse of Authority, exonerated**).

§ 87(4-b) § 87(2)(g)

No video evidence was obtained in regard to this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Andrey Kravchenko refused to provide his name to § 87(2)(b).

Allegation B—Abuse of Authority: Police Officer Andrey Kravchenko refused to provide his shield number to § 87(2)(b).

Allegation C—Abuse of Authority: Police Officer Paulius Simulevicius refused to provide his name to § 87(2)(b).

Allegation D—Abuse of Authority: Police Officer Paulius Simulevicius refused to provide his shield number to § 87(2)(b).

Allegation G—Abuse of Authority: Police Officer Andrey Kravchenko forcibly removed § 87(2)(b) to the hospital.

Allegation H—Abuse of Authority: Police Officer Paulius Simulevicius forcibly removed § 87(2)(b) to the hospital.

Allegation I—Abuse of Authority: Sergeant Anthony Nevandro forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) provided a phone statement and an in-person sworn statement (Board Review 01, 02). § 87(2)(b) did not have the officers' names or shield numbers when she filed the complaint. In her phone statement, § 87(2)(b) stated that she asked the officers for their badge numbers and they refused to provide them.

In her in-person statement, § 87(2)(b) recalled that on September 16, 2018 she was in her residence at § 87(2)(b) in Brooklyn with § 87(2)(b) a home care worker from § 87(2)(b) (Board Review 02). § 87(2)(b) wanted § 87(2)(b) removed from her apartment so she asked her neighbor to call 911 for her. § 87(2)(b) asked her neighbor to assist her because she has vision problems and could not make the call by herself. § 87(2)(b) told the

911 operator that she lived alone and that she had a home care worker in her home whom she wanted removed.

Two officers identified through the investigation as PO Kravchenko and PO Simulevicius then arrived with two EMTs. PO Kravchenko and PO Simulevicius spoke with § 87(2)(b) who told them that she would contact the home care agency to send another staff member to care for § 87(2)(b). The officers then told § 87(2)(b) that her apartment has a history of calls to the police and transports to the hospital. § 87(2)(b) asked PO Kravchenko and PO Simulevicius, "Can I have your badge numbers and your names?" and told them, "I am going to report you". They laughed at her and ignored her request. The officers then left § 87(2)(b)'s residence, having been assured by § 87(2)(b) that she would call for a replacement.

About 20 minutes after the officers left, the home care agency still had not contacted § 87(2)(b) about sending a replacement home care worker so § 87(2)(b) asked another neighbor to help her call 911 a second time. PO Kravchenko and PO Simulevicius again returned to the apartment along with three EMTs. § 87(2)(b) overheard § 87(2)(b) told one officer that she had called the on-call for the home care agency to send another worker and that § 87(2)(b) could not be alone. § 87(2)(b) told the officers she did not believe § 87(2)(b) had called for a replacement and again asked the officers for their badge numbers and names, telling them that she would report them for being rude and arrogant. The officers heard her request but ignored her. PO Kravchenko and PO Simulevicius then informed § 87(2)(b) that if she would not allow the home care worker to stay, they would take her to the hospital because § 87(2)(b) had said § 87(2)(b) could not be alone. § 87(2)(b) asked the officers to give a more specific reason why they were taking her to the hospital and they did not have one. § 87(2)(b) was then removed to § 87(2)(b).

The investigation obtained a recording of § 87(2)(b)'s second call to 911, in which she told the operator that she wanted a woman who works for her to be removed from her apartment (Board Review 19). She stated that police had just left her apartment but she needed them to return. § 87(2)(b) did not make any mention of an issue or complaint with the officers.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) stated in her phone statement that on September 16, 2018, when she arrived at § 87(2)(b)'s apartment, § 87(2)(b) was angry and pacing in and out of her room and the living room (Board Review 04, 05). A few minutes later, § 87(2)(b) came out of her room and started cursing at § 87(2)(b) telling her "I want you to get the fuck out of my house." § 87(2)(b) told her that she could not leave without the home care agency's approval but § 87(2)(b) continued to tell her to get out and stated that she would call the cops on § 87(2)(b). § 87(2)(b) exited her apartment and went downstairs. § 87(2)(b) tried to follow but § 87(2)(b) yelled at her so she stayed in the apartment. § 87(2)(b) believes that § 87(2)(b) asked a neighbor to call 911 for her.

PO Kravchenko and PO Simulevicius then arrived and § 87(2)(b) told them that according to the home care agency, she could not just leave § 87(2)(b) alone. PO Kravchenko and PO Simulevicius told her as it was § 87(2)(b)'s house, if she wanted § 87(2)(b) to leave,

then she must leave. § 87(2)(b) told them that if she left during her shift, she would be responsible if anything happened to § 87(2)(b). PO Kravchenko and PO Simulevicius then said that if § 87(2)(b) would not allow § 87(2)(b) to stay but also needed to be with someone 24/7, they would call for an ambulance to take § 87(2)(b) to the hospital so that she could have assistance. § 87(2)(b) had already called the homecare agency to send a replacement aid but knew that it typically took about an hour for the agency to respond. The officers decided they would leave and told § 87(2)(b) that she had to wait for the agency to call § 87(2)(b) back, then § 87(2)(b) would leave. § 87(2)(b) agreed to wait.

PO Kravchenko and PO Simulevicius left and less than 20 minutes later, § 87(2)(b) went downstairs again. § 87(2)(b) is not sure if she called 911 again or if she ran into the same officers downstairs, but a few minutes later PO Kravchenko and PO Simulevicius again responded to the apartment. They told § 87(2)(b) again that she had to wait the hour for the agency to respond. § 87(2)(b) told the officers that she could not stay in the apartment anymore and would leave. The officers told her she could not leave and stood by the door. They called an ambulance for her and when the EMTs arrived, they conferred with § 87(2)(b) about her medications and medical issues. Additional officers arrived as well but did not stay long. Around this time, the homecare agency called § 87(2)(b) back and was angry that officers were there and that § 87(2)(b) was being taken to the hospital. The officers spoke with the homecare agency and it was decided that they would take § 87(2)(b) to the hospital and that § 87(2)(b) could leave.

At some point during this incident, § 87(2)(b) did tell the two officers, "I will take your badge numbers and I will report you." The officers did not say anything back to her. § 87(2)(b) was unsure when this happened.

PO Kravchenko recalled that on September 16, 2018 at approximately 1:05pm, he and his partner, PO Simulevicius, responded to a radio call requesting police to remove a stranger inside § 87(2)(b) in Brooklyn (Board Review 06). When PO Kravchenko and PO Simulevicius reached the apartment, § 87(2)(b) opened the door and stated that there was a stranger in the living room, then ran to her bedroom. PO Simulevicius went to speak with § 87(2)(b) in her bedroom and PO Kravchenko went to the living room to speak with the health aide, § 87(2)(b). She showed her ID and stated that she was a health aide and had been coming to this apartment for about three weeks. PO Kravchenko asked if there were any health issues with § 87(2)(b) and § 87(2)(b) told him that § 87(2)(b) had 24hr care and some mental problems. § 87(2)(b) told PO Kravchenko that she could get a replacement but that because it was a weekend, she could not contact the office directly for a replacement and had to leave a message. She expected it would take about an hour for the office to send a replacement. PO Simulevicius came into the living room and he and PO Kravchenko exchanged information from their respective conversations. PO Simulevicius told him that § 87(2)(b) just kept repeating she wanted the person out. PO Kravchenko and PO Simulevicius then told § 87(2)(b) that the health aide could get a replacement in an hour and § 87(2)(b) agreed to wait. There were no EMTs on scene during this first interaction.

A few minutes after closing the job, PO Kravchenko and PO Simulevicius received the same call over the radio and returned to the apartment. When they arrived at the apartment, § 87(2)(b) opened the door and immediately stated, "I want her out." PO Kravchenko and PO Simulevicius entered the apartment and § 87(2)(b) told them that she could not wait any longer and that it had been over an hour. PO Kravchenko and PO Simulevicius attempted to tell her that only about 20 minutes had passed. PO Kravchenko decided to call his sergeant, Sergeant

Nevandro, as per protocol. Two EMTs arrived at some point and were also in the apartment. When Sgt. Nevandro arrived, he told § 87(2)(b) that either the health aide would have to stay until the relief arrived or the health aide could leave, but then § 87(2)(b) would have to go to the hospital. § 87(2)(b) decided that she would go to the hospital. § 87(2)(b) walked herself out of the apartment, locked the door, and walked herself to the ambulance in front of the building.

When asked if § 87(2)(b) asked for his name and shield number, PO Kravchenko initially stated that she did not. PO Kravchenko later stated that as she was getting into the ambulance, § 87(2)(b) said she would file allegations and needed his shield number. PO Kravchenko stated his shield number for her. § 87(2)(b) did not ask him to identify himself at any other point during the interaction. PO Kravchenko did not hear § 87(2)(b) ask PO Simulevicius to identify himself.

§ 87(2)(g)
PO Simulevicius recalled speaking with both § 87(2)(b) and § 87(2)(b) and that the officers left after the first call with the understanding that § 87(2)(b) would wait an hour for a replacement homecare worker. PO Simulevicius recalled that when he and PO Kravchenko returned to the apartment, they gave § 87(2)(b) the two options, either that she could stay and wait another hour for a replacement home care worker or, because she needed 24-hour supervision, she could be taken to the hospital but that it was ultimately Sgt. Nevandro who made the call to take § 87(2)(b) to the hospital after he had been briefed by them on scene. As far as § 87(2)(b)'s alleged request for name and shield, PO Simulevicius stated that while they were in the living room during the second interaction, § 87(2)(b) asked for PO Kravchenko's name and shield number. PO Simulevicius heard PO Kravchenko provide his name and shield number verbally to § 87(2)(b). PO Simulevicius stated that § 87(2)(b) never asked for his name or his shield number. PO Simulevicius never refused to provide his name.

Sgt. Nevandro recalled that he was asked to respond to § 87(2)(b) in Brooklyn by PO Kravchenko and PO Simulevicius for an EDP (Board Review 08). When Sgt. Nevandro arrived, PO Kravchenko and PO Simulevicius informed him that the job had come over about 15 minutes earlier, around 1:00pm, as a dispute between § 87(2)(b) and her home attendant. PO Kravchenko and PO Simulevicius were informed that § 87(2)(b) was on 24-hour care and that the home attendant could not just leave. They had called the home attendant's agency for a replacement and were informed that it would take about an hour for a replacement to arrive. § 87(2)(b) had agreed to wait an hour for the replacement home care attendant and PO Kravchenko and PO Simulevicius had left. About 20 minutes later, another job came over and PO Kravchenko and PO Simulevicius returned to this apartment. PO Kravchenko and PO Simulevicius then gave § 87(2)(b) the option to either wait with the home attendant for a replacement or be removed to the hospital.

When asked who made the call to take § 87(2)(b) to the hospital, Sgt. Nevandro stated that § 87(2)(b) made the call as she chose to go to the hospital on her own after being presented with the two options. Sgt. Nevandro verified that it was PO Kravchenko and PO Simulevicius who presented the options to § 87(2)(b). Sgt. Nevandro does not remember if he ever viewed § 87(2)(b) as an EDP but reiterated that she was under 24-hour care and could not be unattended. Sgt. Nevandro never heard § 87(2)(b) state that she did not want to go to the hospital and reiterated that she agreed to go to the hospital. Sgt. Nevandro does not recall seeing

any injuries on § 87(2)(b) nor does he recall ever hearing her say she was going to hurt herself or someone else.

NYPD Patrol Guide Procedure 203-09 states that officers are required to “courteously and clearly state [their] rank, name, shield number, and command, or otherwise provide them, to anyone who requests [they] do so” (Board Review 11).

_____. It is therefore recommended that
allegations A-D be closed as **unsubstantiated**.

[illegible]

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date